

Court No. - 39

Case :- WRIT - C No. - 5483 of 2016

Petitioner :- M/S Vinay Foods And Another

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Another

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Dilip Gupta,J.

Hon'ble Mukhtar Ahmad,J.

This petition seeks the quashing of the demand notice dated 24 November 2015 that has been issued by the Executive Engineer, Pashchimanchal Vidyut Vitran Nigam Limited, Ghaziabad.

It is stated that the respondents sanctioned a load of 60 HP for running a rice mill under LMV-6 Tariff. The respondents have now issued the demand notice. The petitioners dispute the accuracy of the bill.

Though number of submissions have been raised by the learned counsel for the petitioners to assail the bill including the submission that under Section 56(2) of the Electricity Code, 2003, no sum due from any consumer shall be recoverable after the period of two years from the date when sum became first due unless such sum has been shown continuously as recoverable as arrear of charges of electricity supplied and the licensee shall not cut off the supply of the electricity, Sri Narendra Kumar Tiwari, learned counsel appearing for respondent no. 2 points out that the petitioners have a statutory alternative remedy under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 as the accuracy of the bill can be challenged by the petitioners and the complaint is also required to be decided within seven days.

The petitioners do have a statutory alternative remedy under Clause 6.5 of the Code.

The Court, therefore, declines to entertain this petition.

The petition is, accordingly, dismissed.

Order Date :- 10.2.2016

Mukesh

(Dilip Gupta,J.)

(Mukhtar Ahmad,J.)